

Multiple Choice (10 marks)

1. Austin has been described as a 'naive empiricist.' Why?
 - (a) Because he neglects the importance of morality.
 - (b) Because his account of law is based on an anachronistic model of a legal system.
 - (c) Because he conceives of laws in a pragmatic rather than a conceptual manner.
 - (d) Because he overlooks the role of law in economic relations.
2. Which of the following apparent correlatives contradicts Hohfeld's scheme of 'jural relations'?
 - (a) Right and duty.
 - (b) Privilege and no-right.
 - (c) Power and liability.
 - (d) Immunity and disability.
3. Which statement best describes one of Dworkin's central arguments in Justice for Hedgehogs?
 - (a) Morality plays no role in the concept of law.
 - (b) Moral arguments operate only in hard cases.
 - (c) The law dictates what moral values should affect our ethical behaviour.
 - (d) Moral values are both independent and objective.
4. What is the function of "standard-setting in human rights diplomacy"?
 - (a) Standard-setting means putting forward binding legal standards
 - (b) Standard-setting means merely proposing binding legal standards
 - (c) Standard-setting means putting forward non-binding legal standards
 - (d) Standard-setting means setting certain standards of conduct in human rights treaties
5. Is piracy under international (jure gentium) law subject to universal jurisdiction?
 - (a) Piracy jure gentium is subject to flag State jurisdiction
 - (b) Piracy jure gentium is subject to universal jurisdiction
 - (c) Piracy jure gentium is subject to port State jurisdiction
 - (d) Piracy jure gentium is subject to nationality-based jurisdiction

True / False (10 marks)

Answer True or False

6. True or False: The flag State ordinarily exercises jurisdiction over crimes committed on board its vessels.
7. True or False: The protective principle of jurisdiction is concerned primarily with the nationality of the offender involved in the conduct.
8. True or False: Sir Henry Maine was the first jurist to extensively study the comparative aspect of law.
9. True or False: The principle 'pacta sunt servanda' asserts that parties to a treaty should adhere to its terms in good faith.
10. True or False: A valid offer can be made through a letter, as long as it expresses a willingness to enter a contract.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the limitations of Bentham's felicific calculus in the context of constitutional law, focusing on the challenges of predicting all consequences of legal actions.
12. Discuss the limitations of Article 103 of the UN Charter, particularly in relation to jus cogens norms, and analyze the implications for international law and state obligations.

End of Paper